

TENTATIVE RULING:

Plaintiff Lamond King and counsel for Defendant Moises Ramirez are ordered to appear for a Case Management Conference.

3. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
***CASE MANAGEMENT CONFERENCE**
FILED BY:

TENTATIVE RULING:

If the tentative rulings go uncontested, further Case Management Conference is set for November 30, 2026. If either Party challenges the tentative ruling on Line 14, a Case Management Conference will be held.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. THE JOINT CORP
***HEARING ON MOTION IN RE: FINAL APPROVAL**
FILED BY: SENNA, STEPHANIE
TENTATIVE RULING:

Plaintiff Stephanie Senna moves for final approval of her class action and PAGA settlement with defendant John Muir Health. The Court granted preliminary approval on February 2, 2026.

A. Background and Settlement Terms

The original complaint was filed on August 31, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. An amended complaint adding additional PAGA claims was filed October 8, 2025.

The settlement would create a gross settlement fund of \$1,400,000. The class representative payment to the plaintiff would be \$10,000. Attorney's fees would be \$490,000 (35% of the settlement). Litigation costs would not exceed \$25,000. The settlement administrator's costs (ILYM) would not exceed \$12,000. PAGA penalties would be \$50,000. The net amount paid directly to the class members would be about \$825,000. The fund is non-reversionary. The average net payment for each class member is approximately \$1,058.93, with the highest payout being \$5,220.92.

Because one set of LWDA notices in question were filed before June 19, 2024, while the other was filed after that date, penalties attributed to the earlier notice must be allocated 25% to the aggrieved employees, while those attributed to the later notice must be allocated 35% to the aggrieved employees. (Labor Code §2699(m), (v)(1).) \$40,000 of the payment is to be split 75%/25%